



FILING A COMPLAINT IN MUNICIPAL COURT

What You Should Know and Do

In New Jersey, the police enforce the state and local laws. The police should be involved in the investigation of crimes or offenses. They are best suited for filing complaints against individuals who break the law, and they can provide charging information. Citizens may also choose to file a complaint in the municipal court.

The **defendant** (the person you are charging with a crime or offense) must generally be 18 years of age or older. Complaints against juveniles are typically filed by the police in the Superior Court, Family Division. The court administrator is able to provide you with specific information regarding complaints against juveniles.

The incident must have taken place within this municipality, except in certain domestic violence situations.

You (the **complainant**) will be asked to fill out a certification giving details of what happened, when, and where.

If you do not know the exact statute or ordinance to charge, you may ask court staff to provide a copy of the relevant statute book or municipal ordinance book for your review; however, they are not permitted to select the charge for you.

What the Court Will Do

Filing a complaint in the municipal court is the first step in a two-step process. After you file the complaint, the second step requires a judicial officer and/or municipal court judge to determine that there is a reason to believe, based on the information you supplied, that a crime or offense has been committed and that the person being accused (the defendant) committed the offense. This is known as a finding of probable cause. The court will also determine whether the complaint was filed within the time period required.

If the court determines that there is probable cause and that the complaint was filed timely, the complaint will be sent to the defendant and the case will be scheduled for court. You will be notified when you are required to appear, so please notify the court of any mailing address changes.

If the judicial officer and/or judge conclude that there is no probable cause and/or the complaint was not filed timely, the court will notify you by mail. In that event, the court will dismiss the complaint and take no further action.

If Your Complaint Goes to Court

In the municipal court, the lawyer who represents the State is called the municipal prosecutor. It is the municipal prosecutor's responsibility to review the merits of each case to determine if the case should proceed. The municipal prosecutor remains responsible for the case until its conclusion.

Court Staff Assistance

The following is a list of some things the court staff can and cannot do for you. Please read it carefully before asking the court staff for help.

To assist you, court staff **can**:

- answer questions and explain how the court works.
- tell you what the requirements are to have your case considered by the court.
- provide you with samples of available court forms.
- provide you with guidance on how to fill out forms.
- usually answer questions about court deadlines.
- provide you with the telephone number of the lawyer referral service.

Court staff **cannot**:

- give you legal advice – only your lawyer can give you legal advice.
- tell you whether or not you should bring your case to court.
- give you an opinion about what will happen if you bring your case to court.
- recommend a specific lawyer.
- talk to the judge for you about what will happen in your case.
- let you talk to the judge outside of the courtroom.
- change an order issued by the judge.

Please notify the court for any accommodations needed. For additional information on the New Jersey Judiciary or the municipal courts, please go to www.njcourtsonline.com.



November 2010



New Jersey Judiciary
Municipal Court of New Jersey
Complaint Information Form



Instructions: Please complete the following information to the best of your ability. This information will help in the preparation of the complaint.

Your Name (you are the complainant)

Street Address	City	State	Zip
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Telephone Number ext.	Email Address
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Defendant's Name

Street Address	City	State	Zip
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Telephone Number (if known) ext.	Date of Birth (if known)	Driver's License (if known)	State
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Is the person you are charging an elected public official or a candidate for elected public office? ☐ Yes ☐ No
If yes, provide any information regarding what elected office the person is a candidate for or currently holds.

If this is a motor vehicle complaint list:

License Plate # of Other Vehicle	State	Description of vehicle (if known)
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Names and addresses of witnesses (use additional paper if necessary)

Name

Address

For Court Use Only

Court Administrator/Deputy Initials: _____

Date: _____

Corresponding Complaint Numbers: _____

(Every request **requires** the filing of a complaint.)



New Jersey Judiciary
Municipal Court of New Jersey



Certification in Support of Probable Cause

State of New Jersey		Municipal Court Name		County of	
Court Address			City		Zip
Date of Incident	Location of Incident			Municipality	
I offer the following facts and information to establish probable cause in this complaint against (Defendant's name) _____, whom I would like to charge with (list Statutes or Ordinances):					
How do you know the identity of the person you are charging?					
Describe the incident in detail:					
Certification: I certify that the foregoing statements made by me are true. I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.					
Date		Signature of Complaining Witness			
		Print Name			



New Jersey Judiciary
Municipal Court of New Jersey



Confidential Domestic Violence Complaint Information Form
(Not to be Disclosed)

Instructions: Please complete the following information to the best of your ability. This information will help in the preparation of the complaint.

Your Name (you are the complainant)

Street Address	City	State	Zip
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Telephone Number ext.	Email Address
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Defendant's Name

Street Address	City	State	Zip
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Telephone Number (if known) ext.	Date of Birth (if known)	What is your relationship to the defendant?
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Is the person you are charging an elected public official or a candidate for elected public office? ☐ Yes ☐ No
If yes, provide any information regarding what elected office the person is a candidate for or currently holds

When did the offense occur?	Where did the offense occur?
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Is there a domestic violence restraining order in effect? ☐ Yes ☐ No
In which county was the restraining order obtained? What is the effective date of the restraining order?

Names and addresses of witnesses (use additional paper if necessary)

Name

Address

For Court Use Only

Court Administrator/Deputy Initials: _____ Date: _____

Corresponding Complaint Numbers: _____

(Every request requires the filing of a complaint.)